

CHAPTER 82.

An Act to provide for the redemption of annual sums payable in respect of transfers of highways in police burghs under the Roads and Streets in Police Burghs (Scotland) Act, 1891, and for other purposes connected therewith.

[22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

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 under
 54 & 55 Vict.
 c. 32.

1.—(1) Where in pursuance of the Roads and Streets in Police Burghs (Scotland) Act, 1891, the highways in any police burgh have been, or shall hereafter be, transferred to the town council of such burgh on terms, whether arrived at by agreement or settled by the sheriff, which provide for the payment by the town council to the county council of an annual sum, the town council shall redeem their liability to make such payment by making in accordance with the provisions of the following subsection the payments therein specified.

(2) In the case where the highways were transferred prior to the sixteenth day of May, nineteen hundred and twenty-four, the town council shall pay, not later than the fifteenth day of May, nineteen hundred and twenty-six, a capital sum equal to ten times the annual sum and in the case where the highways were or shall be transferred after the date first mentioned in this subsection, the town council shall pay, on the fifteenth day of May, nineteen hundred and twenty-six, or on the fifteenth day of May next ensuing after the date when terms providing for an annual payment have been agreed on or settled by the sheriff if that date be later than the fifteenth day of May, nineteen hundred and twenty-six, a capital sum equal to fifteen times the annual sum, and in any of the aforesaid cases the town council shall also pay to the county council any annual sum which may be due at the date of payment of the capital sum or such part of the annual sum as shall be proportionate to the

period between the date when the last preceding payment of the annual sum fell due and the date of payment of the capital sum.

2. A town council required to make a capital payment under the provisions of this Act may borrow the amount thereof on the security of the assessment imposed by them for the purposes of the Roads and Bridges (Scotland) Act, 1878, provided that any sum so borrowed shall be repaid within ten years or within fifteen years according as the capital sum is ten times or is fifteen times the annual sum in respect of which the capital payment is required to be made.

Power to borrow.
41 & 42 Vict. c. 51.

3. Section three of the Roads and Streets in Police Burghs (Scotland) Act, 1891, is hereby repealed.

Repeal of s. 3 of 54 & 55 Vict. c. 32.

4. This Act may be cited as the Roads and Streets in Police Burghs (Scotland) Act, 1925, and this Act and the Roads and Streets in Police Burghs (Scotland) Act, 1891, may be cited as the Roads and Streets in Police Burghs (Scotland) Acts, 1891 and 1925, and shall be construed together as one Act.

Citation and construction.

CHAPTER 83.

An Act to amend the provisions of the Government of India Act by exempting proposals for expenditure upon certain salaries, pensions and other payments from submission to Indian legislatures, and to enable rules made under the said Act relating to the Civil Services of the Crown in India to be dispensed with or relaxed in certain cases. [22nd December 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Sections sixty-seven A and seventy-two D of the Government of India Act shall as from and after the thirty-first day of March, nineteen hundred and twenty-

Amendment of ss. 67A and 72D of